

complaint

Mr and Mrs M are unhappy that Gresham Insurance Company Limited has declined their claim for storm damage to the exterior of their home under their buildings insurance.

background

In October 2014 Mr and Mrs M noticed water leaking into two of their bedrooms and their living room. They contacted Gresham who sent a loss adjuster round to look at the damage and assess what caused it.

The loss adjuster said that the leaks were because of wear and tear, not storm damage. So the repairs wouldn't be covered by Mr and Mrs M's insurance. They disagreed, and Gresham sent out another loss adjuster. This second opinion again said that the damage that was causing the leaks was because of wear and tear.

Mr and Mrs M got their own quote from a roofing specialist. They say it's inconsistent with Gresham's reports.

Initially Gresham rejected Mr and Mrs M's claim for both the internal and external repairs that were needed. But in their final response to Mr and Mrs M's complaint they explained that the internal repairs should've been covered by the accidental damage cover under the policy. So they agreed to pay for those repairs and gave Mr and Mrs M £100 in compensation for their mistake.

Our adjudicator didn't uphold the complaint. She thought Gresham had acted fairly and reasonably in deciding that the external damage wasn't because of a storm, and so declining to cover those repairs. Mr and Mrs M disagree. They've said that their specialist did a more thorough inspection of the roof, so is more reliable. They say only their specialist went up on the roof to make his assessment.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I've decided not to uphold Mr and Mrs M's complaint. I'll now explain why.

Mr and Mrs M reported the leaks on 25 October 2014. They told Gresham that the spots had been appearing over the previous ten days. And they say there was a storm in that period that caused the damage that resulted in the leaks.

In storm damage cases like this, we consider three questions:

1. Was there a storm on or around the day the damage occurred?
2. Was the damage claimed for consistent with storm damage?
3. Were storm conditions the main cause of the damage?

And for Mr and Mrs M's claim to succeed, I have to be able to answer 'yes' to all three.

was there a storm?

This service's approach is that a storm generally involves violent winds usually accompanied by rain, hail or snow. General bad weather is not regarded as a storm. I've looked at the weather data for the area in the ten days before Mr and Mrs M reported the damage. And I'm satisfied there were storms.

was the damage claimed for consistent with storm damage?

I've taken into account all the reports provided to decide this. I accept what Mr and Mrs M say about the way the inspections were conducted. So I think that their roofer would've had a better view of some parts of the roof than Gresham's loss adjusters had from the ground.

But Mr and Mrs M's roofer doesn't say anything about the cause of the damage he's seen. He just says there's damage and what needs to be done to repair it. I can't see anything in his report that contradicts the expert opinions of the two loss adjusters. One of which specifically says there was "*no storm damage to roof*". So based on all three reports, and the photographs I've seen, I'm not persuaded that the damage to the outside of Mr and Mrs M's house was consistent with storm damage.

Because I've not been able answer 'yes' to the second question, I don't need to consider the third. And it follows that I think Gresham acted fairly and reasonably when it declined Mr and Mrs M's claim for the damage to the outside of their house.

my final decision

For these reasons I've decided not to uphold Mr and Mrs M's complaint against Gresham Insurance Company Limited.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs M to accept or reject my decision before 30 November 2015.

Mike Foster
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